

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shola Gbemi	Team: Squad #05	CCRB Case #: 201809510	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/06/2018 3:25 AM	Location of Incident: 891 Amsterdam Avenue; 24th Precinct stationhouse	18 Mo. SOL 12/21/2020	Precinct: 24
Date/Time CV Reported Sun, 11/11/2018 2:58 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 11/11/2018 2:58 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Smith	04451	929184	024 PCT
2. POM Bryan Wilson	17971	964345	024 PCT
3. POM Stephen Lozada	15022	956857	024 PCT
4. POM Patrick Kavanagh	08706	956789	024 PCT
5. POM Jonathan Powell	11275	961118	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Smith	Abuse: At 891 Amsterdam Avenue in Manhattan, Police Officer John Smith threatened to arrest § 87(2)(b)	A . Exonerated
B . POM John Smith	Force: At 891 Amsterdam Avenue in Manhattan, Police Officer John Smith used physical force against § 87(2)(b)	B . Exonerated
C . POM Stephen Lozada	Force: At 891 Amsterdam Avenue in Manhattan, Police Officer Stephen Lozada used physical force against § 87(2)(b)	C . Exonerated
D . POM Jonathan Powell	Abuse: At 891 Amsterdam Avenue in Manhattan, Police Officer Jonathan Powell refused to provide his name to § 87(2)(b)	D . Unsubstantiated
E . POM Patrick Kavanagh	Abuse: At 891 Amsterdam Avenue in Manhattan, Police Officer Patrick Kavanagh refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . POM Bryan Wilson	Abuse: At the 24th Precinct stationhouse, Police Officer Bryan Wilson did not process § 87(2)(b)'s complaint regarding officers.	F . Substantiated

Summary of Complaint

On November 11, 2018, § 87(2)(b) filed the following complaint by phone with the CCRB.

On November 6, 2018, at approximately 3:25 a.m., staff at the HI New York City Hostel called 911 and reported that § 87(2)(b) was refusing to leave the hostel's lobby. Police Officers John Smith, Stephen Lozada, Patrick Kavanagh, and Jonathan Powell, all of the 24th Precinct, responded to the hostel. PO Smith allegedly told § 87(2)(b) "If you don't comply with exiting this lobby we are going to cuff you and arrest you" (**Allegation A: Abuse of Authority, exonerated**). PO Smith and PO Lozada grabbed § 87(2)(b)'s arms to lift him from a chair in the hostel's lobby (**Allegations B-C: Force, unsubstantiated**). After the officers escorted § 87(2)(b) from the hostel, § 87(2)(b) approached PO Powell and PO Kavanagh while they were seated in their police vehicle. § 87(2)(b) asked both officers to provide their names. Both officers allegedly refused to provide their names to § 87(2)(b) (**Allegations D-E: Abuse of Authority, unsubstantiated**).

After the officers left the scene, § 87(2)(b) went to the 24th Precinct stationhouse to file a complaint against the officers who ejected him from the hostel. At the stationhouse, § 87(2)(b) told Police Officer Bryan Wilson that he wanted to file a complaint against the officers, and PO Wilson did not process § 87(2)(b)'s complaint (**Allegation F: Abuse of Authority, substantiated**).

The investigation obtained surveillance footage from the HI New York City Hostel (BR 04; BR 05). The footage did not contain audio.

Findings and Recommendations

Allegation (A) Abuse of Authority: At 891 Amsterdam Avenue in Manhattan, Police Officer John Smith threatened to arrest § 87(2)(b)

Allegation (B) Force: At 891 Amsterdam Avenue in Manhattan, Police Officer John Smith used physical force against § 87(2)(b)

Allegation (C) Force: At 891 Amsterdam Avenue in Manhattan, Police Officer Stephen Lozada used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) refused to leave the hostel after being asked to do so by staff, and that he continued to refuse to leave when instructed to do so by officers.

§ 87(2)(b) provided accounts of the incident during a phone statement, and later at an in-person interview (BR 01; BR 02). § 87(2)(g) § 87(2)(b) recounted that PO Smith told him, "If you don't get out on your own free will, we are going to cuff you and arrest you." § 87(2)(b) also recounted that PO Smith grabbed his arms and held one arm from beneath § 87(2)(b)'s armpit. PO Lozada held onto § 87(2)(b)'s opposite arm (BR 02).

§ 87(2)(b) was § 87(2)(b) at the hotel at the time of the incident, and he created an incident report and made statements to the CCRB by email (BR 03). He recounted that the officers asked § 87(2)(b) to leave the hostel approximately four times. He did not recall

hearing the officers threaten to arrest § 87(2)(b). He recounted seeing the officers “gently” grab § 87(2)(b) by the arms in order to escort him outside.

The surveillance footage shows that PO Smith and PO Lozada spoke with § 87(2)(b) in the hostel waiting area for nearly seven minutes. § 87(2)(b) remained seated throughout the conversation. Eventually, both officers approached § 87(2)(b)'s sides, grabbed his arms, pulled him up to a standing position, and held onto his arms as he walked out of the hostel (BR 16).

PO Smith confirmed that he instructed § 87(2)(b) to leave the hostel, but denied that he ever threatened to arrest him (BR 06). He recounted that he and PO Lozada eventually grabbed § 87(2)(b)'s arms and escorted him from the hostel. PO Lozada similarly denied that any officer threatened to arrest § 87(2)(b) (BR 07). He could not recall how § 87(2)(b) left the premises, and could not recall if he made any physical contact with § 87(2)(b).

PO Kavanagh could not recall if any officer threatened to arrest § 87(2)(b) (BR 09). He denied seeing officers make physical contact with § 87(2)(b). PO Powell denied hearing PO Smith threaten to arrest § 87(2)(b) and denied seeing officers grab him (BR 08).

NY CLS Penal Law §140.05 states that a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises (BR 13).

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

§ 87(2)(g)
Therefore, it is recommended that **Allegations B-C** be closed as **exonerated**.

Allegation (D) Abuse of Authority: At 891 Amsterdam Avenue in Manhattan, Police Officer Patrick Kavanagh refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: At 891 Amsterdam Avenue in Manhattan, Police Officer Jonathan Powell refused to provide his name to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) recounted that PO Kavanagh and PO Powell returned to their vehicle immediately after they exited the hostel. In his phone statement, § 87(2)(b) recounted that he asked the officer seated in the front passenger seat for his name, but the officer refused to provide it. However, during his in-person statement, § 87(2)(b) recounted that he asked both officers to provide their names, and that he did not obtain their names. In a follow-up email exchange, § 87(2)(b) recounted that the officers merely grunted and mumbled in reply, and did not audibly state their names (BR 15).

PO Kavanagh recounted that he sat in his vehicle's driver's seat after leaving the hostel. He recalled that § 87(2)(b) approached the passenger window seat and spoke to PO Powell, but he did not pay attention to the conversation and could not recall its contents. PO Kavanagh could not recall if § 87(2)(b) asked him or PO Powell for their names. PO Kavanagh denied that he or PO Powell refused to provide their names to § 87(2)(b).

PO Powell recounted that he sat in his vehicle's passenger seat after leaving the hostel. PO Powell confirmed that § 87(2)(b) approached him as he sat in the police vehicle. § 87(2)(b) carried a pen and paper, and he asked both officers for their names and shield numbers. PO Powell stated that both he and PO Kavanagh provided their names and shield numbers to § 87(2)(b) and that § 87(2)(b) wrote down this information.

PO Smith and PO Lozada both testified that they returned to their vehicle after escorting § 87(2)(b) from the hostel, and that they did not know if § 87(2)(b) spoke to PO Kavanagh and PO Powell after he exited the hostel.

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegations D-E** be closed as **unsubstantiated**.

Allegation (F) Abuse of Authority: At the 24th Precinct stationhouse, Police Officer Bryan Wilson did not process § 87(2)(b)'s complaint regarding officers.

It is undisputed that § 87(2)(b) told PO Wilson that he wanted to file a complaint against officers, and that PO Wilson did not give § 87(2)(b) a complaint form or process his complaint at the stationhouse.

§ 87(2)(b) recounted that he told PO Wilson that he wanted to file a complaint against officers who “manhandled” him and who did not assist him in retrieving his food from the hostel. He also said that he wanted to file a report against the hostel for stealing his food. PO Wilson told § 87(2)(b) that he could not file a report because it was a civil matter. An unidentified plainclothes officer then told § 87(2)(b) to leave the stationhouse. At some point, § 87(2)(b) saw a poster in the stationhouse bearing the CCRB's contact information, and he wrote down the information.

PO Wilson recounted that § 87(2)(b) initially wanted to file a report about the theft of his food (BR08). PO Wilson contacted the officers who interacted with § 87(2)(b) at the hostel and learned that § 87(2)(b)'s food had not been stolen. PO Wilson told § 87(2)(b) that he could not make a report about that issue. § 87(2)(b) then asked how he could file a complaint against the officers he encountered at the hostel. § 87(2)(b) did not provide additional details regarding the exact nature of his complaint against the officers. § 87(2)(b) did not inform PO Wilson that officers had “manhandled” him or used force against him. PO Wilson showed § 87(2)(b) a poster with the

CCRB's phone number, mailing address, and email address. PO Wilson did not offer § 87(2)(b) a complaint form or tell him that he could file the complaint at that time at the stationhouse.

PO Wilson recounted that § 87(2)(b) wandered around inside the stationhouse for a few minutes after obtaining the CCRB's contact information, and that § 87(2)(b) repeatedly said that he was not going to leave. PO Wilson told § 87(2)(b) there was nothing else he could do, and instructed § 87(2)(b) to leave the stationhouse. PO Wilson denied that any other officer spoke to § 87(2)(b). PO Wilson did not consult with a supervisor during the incident.

In his CCRB interview, PO Wilson said that he was not aware of his command keeping complaint forms at the stationhouse to provide to civilians. He was also not aware of any requirement that he must provide civilian complaint forms to walk-in complainants at the stationhouse.

NYPD Patrol Guide Procedure 207-31 states that upon receipt of an in-person complaint from a civilian alleging misconduct by a uniformed member of service, an officer is required to interview the complainant, allow the complainant to complete a complaint report in their own handwriting, and to have the complainant sign the form (BR 18).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 12).
- Police Officer John Smith has been a member of service for 17 years and has been a subject in two additional complaints and two allegations, neither of which was substantiated. § 87(2)(g)
- Police Officer Stephen Lozada has been a member of service for four years and has been a subject in one additional complaint and one allegation, which was not substantiated. § 87(2)(g)
- Police Officer Jonathan Powell has been a member of service for three years. This is the first complaint in which PO Powell has been a subject.
- Police Officer Patrick Kavanagh has been a member of service for four years. This is the first complaint in which PO Kavanagh has been a subject.
- Police Officer Bryan Wilson has been a member of service for one year. This is the first complaint in which PO Wilson has been a subject.

Mediation, Civil & Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On May 10, 2019, the New York City Comptroller's Office confirmed that no Notice of Claim had been filed regarding this incident (BR 11).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date